

May 11, 2026
Dept. 9
Probate Tentative Rulings

5.	22PR0096	MATTER OF LITRELL SPECIAL NEEDS TRUST
Accounting		

The venue of this Trust was transferred to El Dorado County from Solano County by Order of the Solano County Superior Court.

The Fifth Account and Report was approved by the court at a hearing held on March 25, 2024.

The Trust calls for accountings “in the manner and frequency required by Probate Code § 1060 and 2620, or as ordered by the Court.” Probate Code § 2620(a) provides that accountings are required “not less frequently than biennially, unless otherwise ordered by the court to be more frequent, . . .” Although the court initially set a review hearing for the Fifth Accounting one year after the Fourth Accounting, there is no requirement in the Trust or the Probate Code to generate an annual accounting.

On March 5, 2026, the Trustee filed a Petition for approval of the Sixth Account and Report of Trustee. In addition, the Petition requests:

1. Approval of the waiver of trustee fees;

2. Approval of the payment of attorney’s fees in the amount of \$5,075 for services to the Trust and \$497.17 in costs, as documented in Exhibit B to the Petition.

TENTATIVE RULING #5:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043). A REVIEW HEARING FOR THE SEVENTH ACCOUNT AND REPORT IS SET FOR 8:30 A.M. ON MONDAY, MAY 9, 2028.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT’S WEBSITE.